Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

**HON. Donald F. Gaffney**

**Counsel and Parties Please Note:**
**Law and Motion in Department N16 is heard on Wednesdays at 9:00 a.m.**

**Date: August 26, 2026**

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

**NOTE:** After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

**If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.**

| # | Case Name | Tentative |
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| 1 | C.S. v. Doe 1, et al. | **STATUS CONF.** |
| 2 | K. vs. DOE 1 | **STATUS CONF.** |
| 3 | Rose vs. 1 | **STATUS CONF.** |
| 4 | S. vs. DOE 1 | **STATUS CONF.** |
| 5 | Greene-Taylor vs. Kwak | **TENTATIVE RULING:**<br><br>**Motion to Strike Portions of the Complaint**<br><br>For the reasons set forth below, Defendant Kyu Dong Kwak's motion to strike the punitive damages allegations in Plaintiff Karen Greene-Taylor's Complaint is GRANTED.<br><br>A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.)<br><br>Punitive damages are governed by Civil Code section 3294: "In an action for the breach of an obligation not arising from contract, where |

it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code § 3294(a).)

To state a prima facie claim for punitive damages, a plaintiff must "set forth the elements as stated in [Civil Code] section 3294," as well as "specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious." (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.)

Oppression and fraud have not been alleged here. Malice is defined in the statute as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294, subd. (c)(1).) Despicable conduct is conduct "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Mock v. Michigan Millers Mutual Ins. Co*. (1992) 4 Cal.App.4th 306, 331.)

Allegations that a defendant exhibited a conscious disregard for the safety of others are sufficient to show malice. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-96; *see also Dawes v. Superior Court* (1980) 111 Cal.App.3d 82.) To properly allege punitive damages in a motor vehicle accident action, a plaintiff needs to "establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences." (*Taylor*, *supra*, 24 Cal.3d at 896.)

The Complaint alleges Defendant's carelessness in driving caused him to side-swipe Plaintiff's vehicle. (Compl. at GN-1.) Defendant departed from the scene. (*Id*.) Plaintiff pursued Defendant, confronted him, and Defendant again fled in his vehicle. (*Id*.)

There are no specific factual allegations showing Defendant was aware of probable dangerous consequences of his conduct beyond the negligence itself. (*Taylor*, *supra*, 24 Cal.3d at 896.) Even assuming Defendant's flight demonstrates he had a consciousness of guilt and intended to evade his responsibilities under the law, there is no allegation of any despicable conduct in which Defendant had a deliberate indifference to known probable consequences to the rights and safety of others.

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| | | The motion to strike is granted. There are no specific facts showing Defendant acted with intentional, willful, or reckless disregard for the safety of others as required for malice.<br><br>Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling.<br><br>Defendant to give notice. |
| 6 | Karasu vs. Beylem | **OFF CALENDAR** |
| 7 | Sykes vs. Lyft, Inc. the Estate of Brandon Blackthorne. Deceased | **TENTATIVE RULING:**<br><br>**<u>Motion to Compel Arbitration</u>**<br><br>Defendant Lyft, Inc., moves to compel arbitration of Plaintiffs George Allen Sykes, individually and as successor in interest to the Etate of Chandler Sykes, and Heather Hughes's survival claim. For the following reasons, the motion is GRANTED.<br><br>**<u>Applicability of the FAA</u>**<br><br>The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (*See Little v. Pullman* (2013) 219 Cal.App.4th 558, 565.)<br><br>The Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The FAA provides that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C., § 2.)<br><br>The parties here do not dispute that the agreement is governed by the FAA's substantive rules.<br><br>**<u>Standard to Compel Arbitration Pursuant to the FAA</u>**<br><br>On a motion to compel arbitration under the FAA, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the |

dispute." (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.)

When deciding whether a valid arbitration agreement exists, courts generally apply "ordinary state-law principles that govern the formation of contracts." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.) Thus, the FAA permits arbitration agreements to be invalidated by "'generally applicable contract defenses, such as fraud, duress, or unconscionability.'" (*AT & T Mobility LLC v. Concepcion*, *supra*, 563 U.S. at p. 339, quoting *Doctor's Associates, Inc. v. Casarotto* (1996) 517 U.S. 681, 687.)

The party seeking to compel arbitration bears an initial burden to make a *prima facie* showing the claims asserted in the complaint are covered by a valid agreement to arbitrate. (*Molecular Analytical Systems v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 710-711.) Then, "the party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration" or that a contract to enforcement exists. (*See Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.)

**Evidence and Scope of Arbitration Agreement**

A party moving to compel arbitration bears an initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166.) If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (See *Gamboa*, 72 Cal.App.5th at 165-166.)

Here, Defendant submits evidence Decedent Chandler Sykes entered into an arbitration agreement with Defendant Lyft, Inc. (Sniegowski Decl. ¶ 13, Exs. 1-2.) Plaintiffs do not dispute the existence, validity, or authenticity of the arbitration provision. (*See generally* Opp.)

The claims brought by Decedent's Estate fall within the broad scope of the arbitration agreement, as the arbitration agreement covers in relevant part: "any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: this Agreement." (Sniegowski Decl., Ex. 2 at p. 23; *see Rice v. Downs* (2016) 248 Cal.App.4th 175, 186, *as modified on denial of reh'g (June 23, 2016), as modified (June 28, 2016)* [holding "broad"

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| | | arbitration agreements cover torts and claims where the allegations "touch matters" covered by the contract].)<br><br>**<u>Defense to Enforcement</u>**<br><br>Plaintiffs' opposition does not argue any contract defense (e.g., unconscionability) exists and, therefore, waives the issue. (*See In re Marriage of Schroeder* (1987) 192 Cal.App.3d 1154, 1164 [noting a brief should contain a legal argument with citation of authorities on the points made, and if not furnished on a particular point, the contention is waived].)<br><br>**<u>Court's Discretion to Not Enforce the Arbitration Agreement or to Stay Arbitration</u>**<br><br>If the court finds a valid arbitration agreement covers the parties' dispute and the FAA's procedural rules apply, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; *see Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218.) The California Arbitration Act (the "CAA"), on the other hand, provides the court discretion to refuse to enforce an arbitration agreement or stay arbitration in circumstances where there is a possibility of conflicting rulings on a common issue of law or fact. (*See* Code Civ. Proc., § 1281.2(c).)<br><br>Plaintiffs argue that the court should exercise its discretion under the CAA to refuse to enforce the arbitration agreement or, in the alternative, stay the proceeding on arbitrable claims until after the trial on Plaintiff's litigated claims.<br><br>Defendant argues that the CAA procedural rules do not provide an "escape hatch" for Plaintiffs to avoid arbitration because the Arbitration Agreement provides the FAA applies, the arbitrator has sole authority to determine issues of arbitrability, and even if the FAA did not apply, then the Delaware choice-of-law provision would govern.<br><br>Although the CAA's procedural rules apply by default in cases brought in California courts, the FAA's procedural rules apply where there is "an express provision in the arbitration agreement" providing for the federal procedural rules to apply. (*See Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 840-841, citing *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922 [even where agreement specifies FAA governs any disputes, CAA governs procedures] and others; *see also Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582 [holding the CAA's |

procedural rules apply by default in cases brought in California courts].)

Courts have held that agreements providing the parties must engage in arbitration "in accordance with" the FAA, "governed by the [FAA]," or "pursuant to the FAA" do not show an express agreement to have the FAA's procedural rules apply. (*See Wright v. WellQuest Elk Grove, LLC* (2026) 119 Cal.App.5th 267, 280-281, *disapproving of Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1115; *Cable Connection, Inc. v. DIRECTV, Inc.* (2008) 44 Cal.4th 1334, 1342-1343 n. 3.) On the other hand, courts have held that agreements providing the agreement is "governed by the [FAA]" or providing that enforcement of the agreement "shall be governed by the [FAA]" do show an express agreement to have the FAA's procedural rules apply. (*See, e.g., Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346; *Peleg v. Neiman Marcus Group, Inc.*(2012) 204 Cal.App.4th 1425, 1445-1446.) As the California Supreme Court explained, "[t]he phrase 'governed by' is a broad one signifying a relationship of absolute direction, control and restraint. . . . [T]he [choice-of-law] clause reflects the parties' clear contemplation that 'the agreement' is to be completely and absolutely controlled by' [the stated jurisdiction's] law." (*Nedlloyd Lines B.V. v. Superior Court* (1992) 3 Cal.4th 459, 469.)

Here, the arbitration agreement provides the agreement "is governed by the Federal Arbitration Act." The court finds this provision reflects the parties' intent to have the agreement governed by both the substantive and procedural requirements of the FAA. In other words, the court has no discretion to refuse to enforce the arbitration agreement or stay the arbitration pending resolution of this proceeding.

**<u>Stay</u>**

Defendant Lyft requests a stay of all claims in this action, pending resolution of the arbitration of the survival claims.

Section 3 of the FAA provides that:

> If any suit or proceeding be brought in any of the courts of the United States upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the parties stay the trial of the action until such arbitration has

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| | | been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration.<br><br>(9 U.S.C., § 3.)<br><br>Where the court orders arbitration of only some pending claims, the court has discretion to stay all proceedings. (*See, e.g., Moses H. Cone Memorial Hosp. v. Mercury Constr. Corp.* (1983) 460 U.S. 1, 22-23; *U.S. for Use and Benefit of Newton v. Neumann Caribbean Intern., Ltd.* (9th Cir. 1985) 750 F.2d 1422, 1426-1427.)<br><br>Here, the court finds overlapping issues of fact and law between those arbitrable claims and those litigated by the heirs. For this reason, the court exercises its discretion to stay this action pending arbitration.<br><br>The court sets an ADR Review Hearing for February 23, 2027, at 9:00 a.m. in this Department.<br><br>Defendant is ordered to give notice. |
| 8 | Acuahuitl vs. Nissan North America, Inc. | **TENTATIVE RULING:**<br><br>**<u>Lawsuit for Exception and Motion for Dismissal</u>**<br><br>Plaintiff Norberto Coyomani Acuahuitl files a "Lawsuit for Exception and Motion for Dismissal." For the following reasons, the motion is DENIED.<br><br>"A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." (Cal. Rules Ct., Rule 3.1110(a).) In addition, the memorandum supporting each motion "must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced." (Cal. Rules Ct., Rule 3.1113(b).)<br><br>Here, the court cannot determine what relief Plaintiff seeks or the ground(s) for that requested relief.<br><br>To the extent Plaintiff's motion opposes Defendant Santander's previously filed demurrer to the purported FAC, that demurrer is no longer pending, thereby rendering Plaintiff's "motion" moot. |

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| | | Defendant to give notice. |
| 9 | Business Buyers, Inc. vs. Thomas Lee Food and Cuisine, LLC | **OFF CALENDAR** |
| 10 | Crowe vs. Dang | **TENTATIVE RULING:**<br><br>**<u>Motion for Relief</u>**<br><br>Plaintiffs Lowell R. Crowe, Jr. and Tamela Crowe move for leave to file a Second Amended Complaint (SAC). Defendants Natasha Benesch and Sameer Dang oppose the motion. For the following reasons, the motion is GRANTED. Plaintiffs shall file the SAC by September 9, 2026.<br><br>On September 24, 2025, the Court sustained the demurrer filed by Defendant Natasha Benesch Dang and the joinder filed by Defendant Sameer Dang to the seventh cause of action in the First Amended Complaint (FAC). (ROA 97.) The seventh cause of action was for breach of contract. While the FAC claimed to have attached as Exhibit 1 a copy of the Residential Purchase Agreement, the FAC did not contain any exhibits. Thus, the Court sustained the demurrer to that cause of action. (Id.) The September 24, 2025, minute order stated, "Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling."<br><br>Plaintiff did not timely file a Second Amended Complaint.<br><br>In the meantime, other Defendants – Elite Group Property Inspection Service, Inc. and Don McMahon – moved to compel arbitration. On January 28, 2026, this Court granted the motion to compel arbitration filed by Defendants Elite Group Property Inspection Service, Inc. and Don McMahon. (ROA 130.) The Court stayed this action pending the outcome of the arbitration between Plaintiffs and Defendants Elite Group Property Inspection Service, Inc. and Don McMahon.<br><br>Plaintiff now seeks leave to file a Second Amended Complaint (SAC) to address the Court's September 24, 2025, ruling. Defendants contend that this motion is prohibited in light of the arbitration stay ordered by the Court. |

**Effect of Arbitration Stay**

"If a court . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc. § 1281.4.)

"The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective." (*Heritage Provider Network, Inc. v. Super. Ct.* (2008) 158 Cal.App.4th 1146, 1152, internal quotes & citations omitted; see also *SWAB Financial, LLC v. E*Trade Securities, LLC* (2007) 150 Cal.App.4th 1181, 1199-1200, internal quotes omitted [after imposing stay pursuant to CCP section 1281.4, "the trial court's power to interfere in the pending arbitration was strictly limited," as "the action at law sits in a twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration"].)

The instant motion for leave to amend to address the claim against Defendants Natasha Benesch and Sameer Dang (parties who have not yet been ordered to arbitration) does not affect the arbitrator's jurisdiction over Plaintiffs' claims against Defendants Elite Group Property Inspection Service, Inc. and Don McMahon in any way. Therefore, granting the instant motion would not violate the stay under Code Civ. Proc. § 1281.4.

According to the joint statement filed by Plaintiffs and Defendants Elite Group Property Inspection Service, Inc. and Don McMahon, the initial management conference for the arbitration ordered by the Court has not taken place. (ROA 171.)

Plaintiffs now have a pending motion to compel against Defendants Natasha Benesch and Sameer Dang to "coordinate a comprehensive ADR process involving all parties." (ROA 167.) That motion is scheduled for hearing on November 25, 2026.

**Code Civ. Proc. § 473**

Plaintiffs' motion relies on Code Civ. Proc. § 473(b), which provides in pertinent part,

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| | | "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties."<br><br>Defendants contend that the motion is untimely under Code Civ. Proc. § 473(b). That is, Defendants contend that the deadline to file the SAC expired 30 days after service of the notice of September 24, 2025, ruling, and thus the deadline expired on October 27, 2025. (ROA 161.) Plaintiffs filed this motion on April 30, 2026.<br><br>However, Code Civ. Proc. § 473(b) does not apply. Section 473(b) applies when a party seeks relief "from a judgment, dismissal, order, or other proceeding taken against him or her." (Code Civ. Proc. § 473(b).) There was no judgment, dismissal, order, or other proceeding taken against Plaintiffs. (See, e.g., *Harlan v. Department of Transportation* (2005) 132 Cal.App.4th 868, 875 ["The state characterizes Harlan's late filing as a default, but the fact is that no 'judgment, dismissal, order or other proceedings' had been taken against Harlan, so there was nothing from which to relieve it."].)<br><br>"A trial court's determinations to deny leave to file a belated amended pleading … [or] to dismiss an action under section 581, subdivision (f)(2) … [is] reviewed for abuse of discretion." (*Leader v. Health Industries of America, Inc*. (2001) 89 Cal.App.4th 603, |

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| | | 612-615.) Courts have broad discretion to accept a late complaint amendment without a noticed motion for relief, or to strike it as untimely. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197; see also *Harlan, supra,* 132 Cal.App.4th at 873 ["While the court had discretion to require a noticed motion before permitting Harlan to file the second amended complaint late, we think it also had discretion under these circumstances to accept the filing without a noticed motion."].)<br><br>Plaintiffs' notice of motion alternatively seeks leave to amend under Code Civ. Proc. § 473(a).<br><br>The trial court "in furtherance of justice" may allow amendment of a pleading. (Code Civ. Proc., § 473, subd. (a)(1).) There is a strong policy in favor of liberally granting leave to amend. (*Mesler v. Bragg Management Co*. (1985) 39 Cal.3d 290, 296.) Typically, leave should be granted unless it would prejudice the defendants. (Ibid.)<br><br>Defendants have not shown that they will suffer any prejudice from allowing Plaintiffs leave to file the SAC.<br><br>Plaintiff is ordered to file the Second Amended Complaint attached as Exhibit "A" to the Russell Declaration within 10 days of this hearing.<br><br>Plaintiffs shall give notice of this ruling. |
| 11 | Cullen vs. Pathway Healthcare Services, LLC | **TENTATIVE RULING:**<br><br>Attorney Mitchell R. Garrett's Application to Appear *Pro Hac Vice* for Defendants Andrew Turner, Jennifer Miller and Defendant/Cross-Complainant Pathway Healthcare Services, LLC is GRANTED.<br><br>The Court finds attorney Mr. Garrett has complied with all the requirements of rule 9.40 of the California Rules of Court.<br><br>Moving party shall give notice. |
| 12 | Hummer vs. Niguel Shores Community Association | **TENTATIVE RULING:**<br><br>**<u>Motion to Be Relieved as Counsel of Record</u>**<br><br>Attorney Austin Nichter's unopposed motion to be relieved as counsel of record for Plaintiff Judith Hummer is GRANTED. |

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| | | The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)<br><br>Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by Moving Counsel, Attorney Austin Nichter, and finds that Moving Counsel have complied with the requirements of Rule 3.1362.<br><br>The court's order shall become effective upon the filing of a Proof of Service showing service of the signed order on Plaintiff Judith Hummer.<br><br>Moving Counsel to give notice. |
| 13 | Towfik vs. AMN Services LLC | **TENTATIVE RULING:**<br><br>**<u>Motion to Enforce Order</u>**<br><br>Plaintiff Orit Towfik moves to enforce this Court's October 8, 2025, order and compel Defendant Farbod Esmailian ("Esmailian") to participate in the pending JAMS arbitration. For the following reasons, the motion is GRANTED.<br><br>Esmailian is ORDERED to rescind his Notice of Withdrawal from the JAMS arbitration within 15 days and participate in the arbitration.<br><br>**<u>Procedural History</u>**<br><br>On July 11, 2025, Defendant AMN Services LLC ("AMN") filed its motion to compel arbitration. It served that motion on counsel for Plaintiff and counsel for Defendant The Regents of the University of California ("The Regents"). (ROA 26.) Esmailian was not served with that motion.<br><br>On August 6, 2025, Defendant The Regents filed a motion for joinder in AMN's motion to compel arbitration. (ROA 43.) The Regents' motion included its own memorandum of points and authorities setting forth its contentions that arbitration should be compelled. (Ibid.) The Regents served Esmailian with that joinder.<br><br>On August 27, 2025, the parties – including counsel for Esmailian – submitted a stipulation to advance the hearing on The Regents' joinder to be heard concurrently with AMN's motion to compel |

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| | | arbitration on October 8, 2025. (ROA 64.) That stipulation was also served on counsel for Esmailian. (ROA 59.) Esmailian was also served with Plaintiff's Opposition to the motion to compel arbitration and the replies filed by the Regents and AMN. (ROAs 86, 96, 102.) In particular, AMN served Esmailian with its reply on October 1, 2025, in which AMN set forth its contentions as to why the arbitration agreement applies to Esmailian. (ROA 94.)<br><br>Esmailian himself, along with counsel, appeared at the October 8, 2025, hearing on the motion to compel arbitration. (ROA 98.) The Court granted the motion to compel arbitration as to all Defendants and the action was stayed pending the completion of arbitration. (Ibid.) AMN served notice of that ruling on Esmailian. (ROA 106.)<br><br>Plaintiff then filed a demand for arbitration and the parties agreed to stay the JAMS arbitration to pursue private mediation. (Naumova Dec., ¶¶ 6-7.) However, after mediation did not result in a settlement, Esmailian's counsel sent a "Notice of Withdrawal from Arbitration" dated March 4, 2026. (Naumova Dec., Ex. H.) On March 25, 2026, Esmailian's counsel emailed the other parties' counsel:<br><br>> Judge Gaffney's order is incorrect as to Dr. Esmailian. Judge Gaffney relied on baseless and erroneous allegations in the Complaint that – "[t]he Complaint alleges that Defendant Esmailian was Defendant Regents' employee and Plaintiffs' supervisor." [¶] It is undisputed that Dr. Esmailian was not the Regent's employee at the time of the alleged incident and has never been the Regent's employee. He was also not Plaintiff's supervisor at the time of the incident and has never been Plaintiff's supervisor. He has no employment affiliation with Plaintiff whatsoever as a matter of law. This is well supported by the facts." (Naumova Dec., Ex. J.)<br><br>On May 1, 2026, Plaintiff filed this motion to enforce the order compelling arbitration. (ROA 130.)<br><br>**<u>Reconsideration</u>**<br><br>Esmailian was served with the Regents' moving papers, Plaintiff's opposition, all of the reply papers for the arbitration motion. He appeared at the hearing, both personally and through counsel. He was served with notice of the Court's ruling. Yet he did not submit any sort of objection to the Court's October 8, 2025, ruling until March 4, 2026 – almost 5 months later, and after he participated in mediation.<br><br>To be clear, Esmailian has not moved for reconsideration of the |

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| | | Court's October 8, 2025, order – he has not filed any motion at all. Instead, his opposition to this motion seeks reconsideration of the October 8, 2025, order. However, any such motion for reconsideration of the October 8, 2025, would be untimely.<br><br>A motion for reconsideration must be filed within 10 days of service on him of notice of entry of the order in question. (Code Civ. Proc. § 1008(a).) The 10-day deadline for seeking reconsideration is extended under Code Civ. Proc. § 1013 for service by mail, fax, electronic service or overnight delivery, which applies "in the absence of a specific exception provided for by this section or other statute or rule of court." (Code Civ. Proc. § 1013(a),(c),(e).)<br><br>Esmailian contends that the Court's October 8, 2025, ruling is erroneous because he does not have an agency relationship with the other defendants because he is an independent contractor. (ROA 138 at 6:8-9 ["Given Defendant Esmailian is an independent contractor, there is simply no basis to claim agency."].) However, the two are not mutually exclusive. (*Secci v. United Independant Taxi Drivers, Inc.* (2017) 8 Cal.App.5th 846, 859 ["California law recognizes that an individual hired as an independent contractor may be an agent. 'Agency and independent contractorship are not *necessarily* mutually exclusive legal categories as independent contractor and servant or employee are. In other words, an agent may also be an independent contractor. [Citation.]' ".].) The Complaint alleges that "UCI HEALTH cloaked Defendant ESMAILIAN with the appearance of actual authority, such that Plaintiff was justified in relying thereon, and therefore his acts and/or omissions to act are imputable to Defendant UCI HEALTH…" (Complaint, ¶ 9.)<br><br>Esmailian also contends that the claim against him for hostile work environment based on race in violation of FEHA is not "intertwined with" the claims against the remaining Defendants, apparently because there are 8 causes of action in total but only one is directed at Esmailian:<br><br>> Additionally, the claim against Defendant Esmailian is not "intertwined with" the claims against the remaining defendants. There is only one cause of action against Defendant Esmailian - Hostile Work Environment Based on Race in Violation of FEHA. There are 8 causes of action against the defendants that filed the Motion to Compel.<br><br>(ROA 138 at 5:19-22.) |

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| | | Not quite. The third cause of action for failure to prevent harassment focuses on Esmailian's conduct. (Complaint, ¶ 62 ["62. At all times relevant to this action, Defendant ESMAILIAN severely and pervasively engaged in unwelcome overtures, racial epithets and unwanted verbal comments based on race with Plaintiff."].) The remaining causes of action assert discrimination or retaliation for Plaintiff's alleged reporting of Esmailian's conduct. (See, e.g., Complaint.) More importantly, however, the Court's order compelling Esmailian to arbitrate was based on principles of agency and equitable estoppel. Esmailian has not established that Plaintiff's agency allegations are false as a matter of law. Esmailian does not provide a sufficient basis to set aside the Court's October 8, 2025, order.<br><br>Plaintiff to give notice. |
| 14 | Colligan vs. So-Cal Boys Restaurant Group Inc. | **OFF CALENDAR** |
| 15 | Mohagen vs. BMW of North America, LLC | **TENTATIVE RULING:**<br><br>For the reasons set forth below, Defendant BMW of North America, LLC's ("BMW" or "Defendant") motion for summary judgment/adjudication is GRANTED.<br><br>Preliminarily, both Plaintiff's opposition and BMW's reply were untimely. The Court exercises its discretion to consider the untimely opposition and reply.<br><br>**<u>Statement of Law</u>**<br><br>"Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . ." (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at 851.)<br><br>A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. |

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| | | § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at pp. 850-51.) However, "[t]he defendant *must* indeed present 'evidence'.""(*Aguilar, supra*, 25 Cal.4th at 855, italics original.)<br><br>In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co*. (1999) 75 Cal.App.4th 832, 840; see also *Dix v. Live Nation Entertainment, Inc.* (2020) 56 Cal.App.5th 590, 604 [where the evidence presented by defendant does not meet its burden, the motion must be denied without looking at the opposing evidence, if any, submitted by plaintiff.]).<br><br>If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc*. (2010) 189 Cal.App.4th 562, 575.)<br><br>The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) "In some instances . . ., 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (*Whitmire v. Ingersoll-Rand Co*. (2010) 184 Cal.App.4th 1078, 1083-1084, *quoting Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co*. (1988) 199 Cal.App.3d 791, 795.) "'If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, *quoting Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)<br><br>In ruling on a motion for summary judgment, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, *quoting Seo v. All–Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved |

against the moving party. (*McCabe v. American Honda Motor Corp*. (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (*Johnson v. United Cerebral Palsy, etc*. (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (*Rosas v. BASF Corp*. (2015) 236 Cal.App.4th 1378, 1392.)

**1ST-3RD CAUSES OF ACTION FOR VIOLATION OF THE SONG-BEVERLY CONSUMER WARRANTY ACT – EXPRESS WARRANTY**

Defendant argues that these causes of action fail because: (1) The Complaint is based on the allegation that Plaintiff was given a new car warranty at the time of her purchase, (2) Plaintiff purchased a used vehicle, (3) she did not receive any new or additional warranty coverage from BMW when she bought the Subject Vehicle used from Crevier, she received only the unexpired balance of coverage remaining under the Warranty that BMW issued when the vehicle was delivered new to the original owner, and (4) BMW was not a party to Plaintiff's purchase.

Defendant cites to *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 in support of its arguments that it is entitled to summary adjudication as to the first through third causes of action for violation of the Song-Beverly Consumer Warranty Act - express warranty.

The Song-Beverly Consumer Warranty Act provides buyers of new motor vehicles with specific remedies when a vehicle turns out to be defective. (Civ. Code, § 1791 et seq.) Section 1793.2 sets forth obligations for manufacturers of consumer goods for which the manufacturer has made an express warranty. For example, Section 1793.2, subdivision (d)(2) gives new car buyers what is known as a refund-or-replace remedy: It requires manufacturers to "promptly replace" a defective new motor vehicle or "promptly make restitution" to the buyer when the manufacturer is "unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts."

The primary holding in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 is that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22,

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| | | subdivision (e)(2) 's definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196.) The court held that "the phrase 'other motor vehicle sold with a manufacturer's new car warranty" — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act's provisions distinguishing between new and used goods — means a vehicle for which a manufacturer's new car warranty is issued with the sale." (*Id*., at 206.)<br><br>Thus, to be considered a new motor vehicle under the Act, a "new car" warranty must have been "*issued with* the sale" of the vehicle. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [emphasis in original] and 199-200 ["the phrase 'other motor vehicle sold with a manufacturer's new car warranty' is most naturally understood to mean other vehicles for which such a warranty is issued with the sale. (§ 1793.22, subd. (e)(2).)"].)<br><br>In issuing a "new car" warranty to a vehicle that is not technically new, "manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer's warranty that accompany new cars." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff'd* (2024) 17 Cal.5th 189].)<br><br>"[S]ection 1795.5, which governs used goods, makes clear that the same warranty protections that consumers of new products have against manufacturers apply to consumers of used products against distributors or retail sellers 'in a sale in which an express warranty is given.'" (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) "In other words, just as with new products, the Act's remedies for failure to repair a used product in conformity with an express warranty have applicability where the express warranty accompanies the sale of the product." (Ibid.)<br><br>"For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) "In both cases, the Act's protections are premised on an express warranty arising from the product's sale." (*Ibid*.)<br><br>Additional notable citations from *Rodriguez* include: |

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| | | • | "If the Legislature had intended to define " 'new motor vehicle' to include a potentially vast category of used cars" with unexpired new car warranties, "it would have been done so more clearly and explicitly than tucking it into a reference to demonstrators and dealer-owned vehicles."" (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 199.)<br><br>• "First, in enacting and amending the Song-Beverly Act, the Legislature has maintained a distinction between "new" and "used" products and has specified the warranty protections applicable to each category. The Legislature has shown it knows how to legislate on "used" products (§ 1795.5), and it has employed clear language when it wants to make a "used" product subject to the warranty protections that apply to the product when new (see § 1791, subd. (a) [" 'Consumer goods' shall include new and used assistive devices sold at retail"]). In defining "new motor vehicle," section 1793.22, subdivision (e)(2) does not mention "used" vehicles; the word "used" nowhere appears. This bolsters the inference that the phrase "other motor vehicle sold with a manufacturer's new car warranty" was not intended to cover any used car with an unexpired new car warranty." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.)<br><br>• "Section 1793.22, subdivision (e)(2) defines 'new motor vehicle' to include a new vehicle 'bought or used primarily for personal' purposes as well as 'a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty.' " (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 195.)<br><br>• "The Song-Beverly Consumer Warranty Act provides buyers of new motor vehicles with specific remedies when a vehicle turns out to be defective." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 195 [citing Civ. Code, § 1791 et seq.; hereafter the Act or the Song-Beverly Act; all undesignated statutory references are to the Civil Code].)<br><br>• "Section 1793.2, subdivision (d)(2) gives new car buyers what is known as a refund-or-replace remedy: It requires manufacturers to 'promptly replace' a defective new motor vehicle or 'promptly make restitution' to the buyer when the manufacturer is 'unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express |

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| | | warranties after a reasonable number of attempts.' " (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 195.)<br><br>• "These enhanced remedies under the Act for breach of express warranty are 'distinct from' and 'in addition to' remedies otherwise available in contract under the California Uniform Commercial Code." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 195 [citing *Niedermeier v. FCA US LLC* (2024) 15 Cal.5th 792, 810, 811].)<br><br>Here, Defendant established that (1) Plaintiff did not receive any new or additional warranty coverage from BMW at the time of the sale when she bought the Subject Vehicle used from BMW of Buena Park, she received only the unexpired balance of coverage remaining under the Warranty that BMW issued when the vehicle was delivered new to the original owner (UMF ¶¶ 1-3, 5, 7 [and evidence cited therein]); (2) Plaintiff purchased the used Certified Pre-Owned vehicle on 2/1/22 and was given a CPO warranty (UMF ¶¶ 5-7 [and evidence cited therein]); (3) CPO warranties are only issued to used, CPO vehicles and are not new car warranties (UMF ¶¶ 6-7 [and evidence cited therein]); (4) BMW was not a party to Plaintiff's purchase (UMF ¶ 8 [and evidence cited therein]); (5) BMW is not the manufacturer of the Subject Vehicle, but a distributor (UMF ¶ 9 [and evidence cited therein]); (6) the Complaint only alleges violations of the New Vehicle Limited Warranty (UMF ¶ 4, 10 [and evidence cited therein]).<br><br>Based upon the foregoing, Defendant BMW has met its moving burden of production and the burden shifts to the Plaintiff to make a prima facie showing of the existence of a triable issue of material fact. Plaintiff fails to meet her burden as Plaintiff failed to include any evidence in support of the opposition. For this reason alone, Defendant is entitled to judgment in its favor as to these causes of action.<br><br>Moreover, the opposition focuses on the CPO warranty that was provided to Plaintiff at the time she purchased the used vehicle. However, the Complaint and the subject violations of express warranty at issue in this action, are based on the new car warranty attached to the Complaint as Exhibit A. As established by BMW, this new car warranty was not issued at the time of Plaintiff's purchase and a CPO warranty is not the same as a new car warranty. Instead, she received the unexpired balance of coverage remaining under the new car warranty that BMW issued when the vehicle was delivered new to the original owner. Plaintiff concedes the vehicle was a |

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| | | Certified *Pre-Owned* vehicle and that the Subject Vehicle had one prior owner before Plaintiff purchased it.<br><br>A trial court must grant a motion for summary judgment (or, alternatively, summary adjudication) "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) Whether a factual issue is material is determined by the pleadings which "set the boundaries of the issues to be resolved at summary judgment." (*Conroy v. Regents of University of California* (2009) 45 Cal.4th 1244, 1250.) The moving party's burden is to negate the theories of liability alleged in the operative pleading, not to "'refute liability on some theoretical possibility not included in the pleadings...'" (Id. at pp. 1254–1255.) The moving party is not required "to negate elements of causes of action plaintiffs [or cross-complainants] never pleaded." (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 182.) It follows that a party cannot avoid summary judgment by relying on theories that are not alleged in the pleadings. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 332–333.)<br><br>The CPO warranty was not mentioned in the Complaint. Thus, Plaintiff cannot rely on the existence of an unpleaded warranty to defeat summary judgment.<br><br>Accordingly, summary judgment/adjudication is granted in Defendant's favor as to these causes of action.<br><br>**<u>FOURTH CAUSE OF ACTION FOR VIOLATION OF THE SONG-BEVERLY WARRANTY ACT - IMPLIED WARRANTY</u>**<br><br>Defendant argues that Plaintiff's fourth cause of action for violation of the Song-Beverly Warranty Act - implied warranty is barred because the claim depends on the Subject Vehicle being a "new motor vehicle" and thus fails for the same reasons above. Furthermore, if this claim depends on the Subject Vehicle being a used car, that claim also fails pursuant to the holding in *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 because "Plaintiff bought the Silverado used, and he has "no evidence that [GM] was a distributor or retail seller of [the used Silverado] or in any way acted as such."<br><br>Plaintiff cites Civ. Code § 1791.1; § 1794; and § 1795.5 in this cause of action. |

Section 1791.1 states implied warranties for *new* consumer goods. (Id.,subd. (c).)

Section 1794 governs availability of civil penalties for breach of express or implied warranties.

Section 1795.5 governs the obligations "of a distributor or retail seller of used consumer goods" in a sale in which an express warranty is given.

Here, Plaintiff's Compliant is premised on the allegation that Plaintiff entered into a warranty contract with BMW, as she was issued an express warranty attached to the Compliant as Exhibit A. Exhibit A is a new car warranty. As previously established, Plaintiff purchased a used car and was not issued a new car warranty at the time of her purchase of the Subject Vehicle.

Thus, Defendant is entitled to judgment on this cause of action for the same reasons stated above and the Court need to address the other arguments presented by Defendant.

Accordingly, summary judgment/adjudication is granted in Defendant's favor as to this cause of action.

**PLAINTIFF'S REQUEST FOR LEAVE TO AMEND**

"[A] plaintiff [or cross-complainant] wishing 'to rely upon unpleaded theories to defeat summary judgment' must move to amend the complaint before the hearing." (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 648.)

Although leave to amend should be liberally granted, the trial court has discretion to deny it when a party unreasonably delays making the request. (*Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280.) Unreasonable delay may be found where a plaintiff seeks leave to amend only after the defendant moves for summary judgment on grounds addressed by the proposed amendment and the proposed amendment is based on facts previously known to the plaintiff. (Ibid.) "It would be patently unfair to allow plaintiffs to defeat [the] summary judgment motion by allowing them to present a 'moving target' unbounded by the pleadings." (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176.)

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| | | Here, Plaintiff alleged violations of the express warranties provided in the new car warranty attached as Ex. A to the Complaint. The untimely opposition to the motion for summary judgment asserted that Plaintiff was given a CPO warranty with her purchase. Given that this action was initiated in 2024, the request to amend was only raised in an effort to defeat summary judgment or adjudication, and that trial is set for 10/19/26, the Court denies Plaintiff's request for leave to amend the Complaint.<br><br>**<u>A Word of Warning</u>**<br><br>Generative artificial intelligence (AI) tools that supply natural language answers to user prompts are now in wide use. Counsel are responsible for providing the Court with complete and accurate representations of cited legal authorities. Use of generative AI is not prohibited, but counsel must personally confirm for themselves the accuracy of any research conducted by these means, and counsel alone bears ethical responsibility for all statements made in filings. The signature or listing of counsel on a filing containing AI generated content, including citations generated by AI, constitutes a certification the signer (and any attorney listed on the filing) has personally verified the content's accuracy. The court will impute any errors by such AI tools to the signer and any other attorney or self-represented party listed on the filing. Failure to verify the accuracy of submissions, particularly the accuracy of citations to law and evidence, may be grounds for sanctions or disciplinary action before the State Bar.<br><br>Defendant to give notice. |
| 16 | Tran vs. Jaguar Land Rover North America, LLC | **TENTATIVE RULING:**<br><br>For the reasons set forth below, Defendant Jaguar Land Rover North America, LLC's motion for summary adjudication is DENIED as to the $8^{th}$, $9^{th}$ and $10^{th}$ causes of action in Plaintiff Nhu Tran's Complaint, and GRANTED as to the $5^{th}$ $6^{th}$ and $7^{th}$ causes of action.<br><br>**<u>Statement of Law</u>**<br><br>"Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . ." |

(*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant *must* indeed present ‘evidence’."”(*Aguilar, supra*, 25 Cal.4th at 855, italics original.)

In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co*. (1999) 75 Cal.App.4th 832, 840; see also *Dix v. Live Nation Entertainment, Inc.* (2020) 56 Cal.App.5th 590, 604 [where the evidence presented by defendant does not meet its burden, the motion must be denied without looking at the opposing evidence, if any, submitted by plaintiff.]).

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc*. (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) “In some instances . . ., ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (*Whitmire v. Ingersoll-Rand Co*. (2010) 184 Cal.App.4th 1078, 1083-1084, *quoting Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co*. (1988) 199 Cal.App.3d 791, 795.) “‘If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.’” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, *quoting Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences

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| | | in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, *quoting Seo v. All–Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp*. (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (*Johnson v. United Cerebral Palsy, etc*. (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (*Rosas v. BASF Corp*. (2015) 236 Cal.App.4th 1378, 1392.)<br><br>**Objections**<br><br>Defendant asserts objections to the declaration of Ms. Tran and the declaration of Mr. Agyeman. The court OVERRULES the objections to the declaration of Tran at paragraphs 4 and 9. The court DECLINES TO RULE on the remaining objections to both declarations pursuant to Code Civ. Proc. § 437c, subd. (q) ("the court need rule only on those objections to evidence that it deems material to its disposition of the motion").<br><br>**Defendant's Separate Statement**<br><br>As a preliminary matter, Plaintiff contends that Defendant's separate statement does not comply with California Rules of Court, rule 3.1350(d)(3), which provides: "The separate statement must be in the two-column format specified in (h). The statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in that same column. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers."<br><br>Plaintiff contends that Defendant repeatedly restarts and duplicates fact numbers under subsequent issues, which makes it difficult to identify the precise facts and evidence upon which Defendant relies. |

The court finds that Defendant's separate statement substantially complies with the requirements of the California Rules of Court, and that the duplication of facts for some of the issues does not render the separate statement difficult to comprehend. (See *Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1021 [court may consider separate statement that "substantially complied with requirements"]).

**5th Cause of Action - Failure to Commence Repairs Within a Reasonable Time and 6th Cause of Action -Failure to Complete Repairs Within 30 Days**

In her Complaint, Plaintiff Tran alleges that Defendant JLRNA and its representative failed to commence the service or repairs within a reasonable time. (Compl., ¶ 33). Plaintiff has been damaged by Defendant's failure to comply with its obligations pursuant to Civ. Code § 1793.2(b). (Compl., ¶ 34). Defendant and its representative allegedly failed to service or repair the Vehicle so as to conform to the applicable warranties within 30 days, in violation of Civil Code § 1793.2(b). (Compl., ¶ 38). Plaintiff has been damaged by Defendant's failure to comply with its obligations pursuant to § 1793.2(b). (Compl., ¶ 39).

Civ. Code § 1793.2, subd. (b) states:

> Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.

See also *Schreidel v. American Honda Motor Co*. (1995) 34 Cal.App.4th 1242, 1249 ["Service or repairs of nonconforming goods must be commenced within a "reasonable time," and completed within 30 days unless the buyer agrees in writing to the contrary."]).

Defendant contends that Plaintiff's claims fail because Defendant never took longer than 30 days for each repair service. In support of

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| | | Defendant's contention, Defendant presents the following in its Separate Statement of Undisputed Material Fact:<br><br>Plaintiff purchased the Vehicle on May 31, 2024, at Jaguar Land Rover Anaheim Hills ("JLR Anaheim Hills") located at 5425 East La Palma Ave., Anaheim, California 92807. (SSUMF 12). JLRNA maintains a database of warranty claims submitted by its authorized repair facilities. (SSUMF 10). Repair facilities also provide JLRNA detailed reports of warranty claims. (SSUMF 11). During her possession of the Vehicle, Plaintiff presented the Vehicle for repair to LR Anaheim Hills; JLR Puente Hills, located at 17673 Gale Ave., City of Industry, California 91748; and JLR Riverside located at 8051 Auto Drive, Riverside, California 92504. (SSUMF 15).<br><br>The following is a summary of the repair history:<br><br>• June 3, 2024, at JLR Anaheim Hills with 130 miles on the odometer for the Check Engine Light being on and the Vehicle shaking;<br>• July 3, 2024, at JLR Puente Hills with 979 miles on the odometer for the Check Engine Light being on;<br>• September 5, 2024, at JLR Puente Hills with 5,160 miles on the odometer for Check Engine Light and engine shudder;<br>• December 18, 2024, at JLR Riverside with 10,840 miles on the odometer for Check Engine Light and stuttering on first start up; and<br>• September 24, 2025, at JLR Riverside with approximately 24,497 miles on the odometer for coolant leak<br><br>(SSUMF 16).<br><br>The bumper-to-bumper warranty had not expired at the most recent presentation. (SSUMF 17). A comparison of the "R.O. Opened" and the "Ready" dates from the repair orders produced by Plaintiff establish that the servicing retailers did not keep the Vehicle in their possession for more than 30 days during any of the first four presentations. (SSUMF 48). The records established that each servicing retailer commenced the repair within 30 days of presentation. (SSUMF 49). The repair orders that Plaintiff produced in response to Requests for Production Nos. 8 through 10 as well as JLRNA's warranty reimbursement records to servicing retailers indicate that all of Plaintiff's repair presentations occurred during the express warranty period. (SSUMF 50).<br><br>Defendant has established that Defendant commenced the repairs within a reasonable time and that all repairs were completed within 30 days. Accordingly, Defendant has met its burden. |

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| | | Plaintiff does not dispute that all repairs were completed within 30 days. However, Plaintiff contends that Defendant violated this statute for the following reasons: The September 5 repair order contains no documented technician activity until September 9, with further work spread over September 10, 16, and 17. The December 18 repair order promised same-day completion, yet the first technician clock-in appears on December 19, and further entries appear on December 26.<br><br>However, none of these establish that Defendant did not commence the repairs within a reasonable time frame. The biggest gap noted by Plaintiff was only four days between the repair order and technician activity, and the repair was completed by September 17, 2025 (approximately twelve days).<br><br>Nor do these facts establish a failure to comply with Civ. Code § 1793.2, subd. (b)'s 30-day requirement.<br><br>Plaintiff's cause of action was specifically grounded in Civ. Code § 1793.2, subd. (b). (See Compl., ¶¶ 33-36 and ¶¶ 38-41; see also *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 38 [The court looks to the pleadings as "the outer measure of materiality" in a motion for summary judgment.]). The fact that one facility may have promised same-day completion but was unable to do so does not constitute a violation of this subdivision.<br><br>Because Plaintiff failed to establish that any single repair attempt took longer than 30 days or that Defendant failed to commence the repairs within a reasonable time frame, Plaintiff failed to create a triable issue of material fact as to these causes of action. Accordingly, the court GRANTS the motion as to these causes of action.<br><br>**<u>7th Cause of Action -Failure to Maintain Sufficient Service and Repair Facilities</u>**<br><br>Plaintiff alleges that Defendant failed to maintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties or to designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranty as required by Civil Code § 1793.2(a). (Compl., ¶ 43).<br><br>Civ. Code § 1793.2, subd. (a)(1)(A) provides in pertinent part: |

> (a) Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall:
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> (1)(A) Maintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of those warranties or designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties.

Defendant presents the following in support of its motion:

Plaintiff purchased the Vehicle on May 31, 2024, at Jaguar Land Rover Anaheim Hills located at 5425 East La Palma Ave., Anaheim, California 92807. (SSUMF 12). Plaintiff's address is listed as 747 N. Ocean Bluff Avenue, San Dimas, CA 91773 ("San Dimas Address"). (SSUMF 13). During her possession of the Vehicle, Plaintiff presented the Vehicle for repair to LR Anaheim Hills; JLR Puente Hills, located at 17673 Gale Ave., City of Industry, California 91748; and JLR Riverside located at 8051 Auto Drive, Riverside, California 92504. (SSUMF 15). The repair orders for the presentations at JRL Anaheim Hills and LR Riverside identify the San Dimas address as the customer address. (SSUMF 18). The distance between Plaintiff's San Dimas address to JLR Anaheim Hills is 26 miles, and to JLR Riverside is 38 miles. (SSUMF 20). The distance between the Fontana Address to LR Puente Hills is 37 miles. (SSUMF 21). A comparison of the "R.O. Opened" and the "Ready" dates from the repair orders produced by Plaintiff establish that the servicing retailers did not keep the Vehicle in their possession for more than 30 days during any of the first four presentations. (SSUMF 48). The repair orders that Plaintiff produced in response to Requests for Production Nos. 8 through 10 as well as JLRNA's warranty reimbursement records to servicing retailers indicate that all of Plaintiff's repair presentations occurred during the express warranty period. (SSUMF 50)

Defendant also contends that Plaintiff asserted in her discovery responses that she properly maintained the vehicle at these repair centers/facilities. In response to Special Interrogatory No. 9 that requested Plaintiff to describe in detail all facts that support any contention that she properly maintained the Vehicle, Plaintiff responded in part that "Pursuant to CCP § 2030.230, Responding Party elects to refer to documents and specifies the documents already provided by Plaintiff to Defendant" and "the documents

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| | | served along with these responses." (SSUMF 42). Defendant contends that Plaintiff tacitly concedes that she properly maintained the subject vehicle and cannot conversely claim that Defendant failed to maintain or designate repair facilities reasonably close to areas where its goods are sold.<br><br>At the outset, the plain language of the statute only requires that the manufacturer maintain such facilities reasonably close to all areas where its consumer goods are sold. Defendant had a service facility at JLR Anaheim Hills, where Plaintiff purchased the vehicle. Defendant also had two other service facilities that were 38 miles away or less. Therefore, the court finds that Defendant met its burden with regards to this claim.<br><br>In response, Plaintiff does not dispute those facts. Instead, Plaintiff argues that Defendant presents no competent evidence concerning appointment availability, technician staffing, facility workload, diagnostic capacity, ability to obtain manufacturer guidance, or the time facilities could actually begin work.<br><br>However, Defendant has provided evidence that it had three repair facilities all within 38 miles (including one at the dealership where Plaintiff purchased her vehicle) and that all repairs were completed within 30 days.<br><br>Plaintiff also contends Defendant's own discovery responses characterize authorized retailers as separate third parties and disclaim possession or control of retailer-generated information, that Defendant's motion asks the Court to "infer actual network sufficiency without any evidence regarding those operational facts." However, Plaintiff presents no evidence in support of this assertion. Plaintiff does not create any triable issue as to whether any of the facilities she visited were repair facilities maintained by Defendant as required by Civ. Code § 1793.2, subd. (a)(1)(A).<br><br>Ultimately, Plaintiff argues that she had to use three different authorized retailers, and the same engine/check-engine-light concerns recurred. However, Plaintiff is essentially arguing that the statute was violated because the dealer did not *successfully* repair the vehicle. But Civ. Code § 1793.2, subd. (a)(1)(A) requires Defendant to designate and authorize "repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties." Plaintiff has not created a triable issue as to this subdivision. |

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| | | Accordingly, the court GRANTS the motion as to this cause of action.<br><br>**8th Cause of Action -Failure to Make Service Literature and Parts Available**<br><br>Plaintiff alleges that Defendant failed to make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period, as required by Civil Code § 1793.2(a)(3). (Compl., ¶ 48). Plaintiff has been damaged by Defendant's failure to comply with its obligations pursuant to § 1793.2(a)(3). (Compl., ¶ 49).<br><br>Civ. Code § 1793.2, subd. (a)(3) provides that manufacturers shall "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."<br><br>Defendant contends Section 1793.2(a)(3) simply requires Defendant to provide "sufficient service literature and replacement parts to effect repairs during the express warranty period", and Plaintiff's special interrogatory responses and the repair orders that Plaintiff produced in response to Requests for Production Nos. 8 through 10, as well as Defendant's warranty reimbursement records to servicing retailers, establish that all Plaintiff's repair presentations occurred within the express warranty period. (SSUMF 42, 50). Defendant sets forth that these responses and production contradict any potential claim that the servicing retailer halted or terminated repair past the expiration of the warranty period due to a lack of parts. (SSUMF 51).<br><br>Defendant presents its special interrogatory no. 18 to Plaintiff, which states: "If YOU contend that any NONCONFORMITY in the SUBJECT VEHICLE has not been repaired after a reasonable number of repair attempts, please describe with specificity each such NONCONFORMITY, including but not limited to the nature of the NONCONFORMITY, the circumstances under which the NONCONFORMITY occurred, the date that YOU first became aware of the NONCONFORMITY, the actual or approximate odometer reading when YOU first became aware of the NONCONFORMITY, the date(s) YOU presented the NONCONFORMITY to JLRNA or any JLRNA authorized repair facility, and the date(s) the NONCONFORMITY manifested itself after the last repair attempt. In answering this interrogatory, please describe each NONCONFORMITY in the same manner YOU would describe the concern if YOU were presenting it to a JLRNA authorized repair facility for repair under warranty." |

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| | | Plaintiff responded: "Responding Party refers to Code of Civil Procedure Section 2030.230 and specifies the sales, service records, and registration relative to the subject vehicle. Damages are not static in a lemon law case and this interrogatory calls for a static response. Responding Party, who has offered Defendants the opportunity to take Plaintiff's deposition on multiple occasions, will respond further in a fully noticed deposition. Discovery and investigation are continuing." (SSUMF No. 43, Ex. D).<br><br>Defendant provided evidence of Plaintiff's responses to interrogatories and requests for production, which demonstrate that Plaintiff is relying on the sales, service records, and registration. Defendant has shown through the service records that the dealer and other repair facilities performed warranty work on Plaintiff's vehicle, and that the repairs were completed within 30 days and during the warranty period.<br><br>In her Opposition, Plaintiff argues that the subject-vehicle records show repeated dependence on manufacturer-controlled diagnostic and repair resources. Dealers used TOPIx Cloud, electrical wiring diagrams, fault-breakdown procedures, RVC codes, repair plans, and PCM software. Plaintiff contends that the June repair addressed a P0351-13 diagnostic code as a backed-out connector, and when the condition returned in December, the dealer found no physical connector abnormality and instead generated a repair plan requiring a PCM software update, which demonstrates that the earlier information or procedure did not effect a lasting repair. (See DF Ex. G). Defendant did not address this discrepancy in its Reply.<br><br>The court finds that Plaintiff has created a triable issue of material fact given the inconsistent determinations between visits that resulted in ineffective repairs. Accordingly, the motion as to this cause of action is DENIED.<br><br>**9th Cause of Action – Advertising Defective Merchandise Without Disclosing Defects**<br><br>In Plaintiff's Complaint, Plaintiff alleges the following: On May 31, 2024, Defendant advertised, called attention to, or gave publicity to the sale of merchandise, which merchandise was defective in any manner, without conspicuously displaying directly in connection with the name and description of that merchandise and each article, unit, or part thereof, a direct and unequivocal statement, phrase, or word which clearly indicated that the merchandise or each article, unit, or |

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| | | part thereof so advertised was defective, in violation of Business & Professions Code section 17531. (Compl., ¶ 53).<br><br>The representations were made in a newspaper, magazine, circular, form letter or in an open publication, published, distributed, or circulated in this state, including over the Internet, or on any billboard, card, label, or other advertising medium, or by means of another advertising device. (Compl., ¶ 54). Plaintiff has suffered injury in fact and has lost money or property as a result of Defendant Warrantor's violation of Business & Professions Code section 17531. Pursuant to Business & Professions Code section 17535, the Court may enjoin Defendant from engaging in any future violations of section 17531, and may make such orders or judgments, including the appointment of a receiver, as may be necessary to restore to Plaintiff any money or property, real or personal, which may have been acquired by means of the violation of Business & Professions Code section 17531. (Compl., ¶ 55).<br><br>Bus. & Prof. Code § 17531 provides as follows:<br><br>It is unlawful for any person, firm, or corporation, in any newspaper, magazine, circular, form letter or any open publication, published, distributed, or circulated in this state, including over the Internet, or on any billboard, card, label, or other advertising medium, or by means of any other advertising device, to advertise, call attention to or give publicity to the sale of any merchandise, which merchandise is secondhand or used merchandise, or which merchandise is defective in any manner, or which merchandise consists of articles or units or parts known as "seconds," or blemished merchandise, or which merchandise has been rejected by the manufacturer thereof as not first class, unless there is conspicuously displayed directly in connection with the name and description of that merchandise and each specified article, unit, or part thereof, a direct and unequivocal statement, phrase, or word which will clearly indicate that the merchandise or each article, unit, or part thereof so advertised is secondhand, used, defective, or consists of "seconds" or is blemished merchandise, or has been rejected by the manufacturer thereof, as the case may be…<br><br>First, Defendant contends that Plaintiff's request for an injunction fails, because "[i]njunctive relief had no application to wrongs which have been completed [citation], absent a showing that past violations will probably recur." (*Madrid v. Perot Systems Corp.* (2005) 130 Cal. App. 4th 440, 465 [internal citations omitted]). However, Plaintiff's |

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| | | prayer also seeks damages and restitution. (See Compl., Prayer at ¶¶ 1, 2). Accordingly, Defendant does not meet its burden with this argument.<br><br>Next, Defendant contends that Plaintiff's claim fails because of Plaintiff's discovery responses. Defendant sets forth the following: Defendant's Request for Production No. 3 requested the production of "All sales literature, including any internet web pages, relating to the VEHICLE which YOU reviewed or relied upon before acquiring the VEHICLE." (SSUMF 39). Plaintiff served her verified responses to the written discovery requests and produced documents on or around February 4, 2025. (SSUMF 41). In response to Request for Production No. 3, Plaintiff eventually responded after numerous boilerplate objections that "subject to and without waiving said objection: after a good faith search, Plaintiff has determined that any relevant web pages, which date back to before 2018 are no longer available." (SSUMF 45).<br><br>Vehicles distributed by Defendant in the United States are identified by a model year rather than their calendar year of production. (SSUMF 6). A new model year is typically introduced in the preceding calendar year; thus, 2024 model year vehicles are introduced in 2023. (SSUMF 7). Defendant does not start advertising or marketing vehicles before it introduces vehicles to market. (SSUMF 8). Thus, Defendant did not advertise its 2024 model year vehicles prior to 2023, and certainly did not have any advertising for any 2024 model vehicles in 2018 or before. (SSUMF 9).<br><br>However, Defendant's request for production was narrowed to "sales literature, including any internet web pages." Plaintiff's Complaint did not just reference sales literature. She alleged that the representations were made: in a newspaper, magazine, circular, form letter or in an open publication, published, distributed, or circulated in this state, including over the Internet, or on any billboard, card, <u>label</u>, <u>or other advertising medium, or by means of another advertising device</u>. This would include a window sticker advertising a vehicle as "new" or a representative stating that the vehicle is "new".<br><br>As set forth above, the court looks to the pleadings as "the outer measure of materiality" in a motion for summary judgment. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.) Defendant's discovery and Plaintiff's responses that Defendant set forth in its SSUMF do not address the entirety of Plaintiff's allegations. |

Accordingly, the court finds that Defendant failed to meet its burden, and the motion is DENIED as to this cause of action.

**<u>Conversion</u>**

Plaintiff alleges the following: Plaintiff is the owner of and has an immediate right to possession of a specific sum of money which is capable of identification. Specifically, pursuant to Civil Code § 1793.2(d), Plaintiff is entitled to restitution of the amounts paid or payable for the Vehicle from Defendant. (Compl., ¶ 57). Instead of delivering the money to which Plaintiff is entitled to Plaintiff, Defendant has wrongfully converted that money for its own use. (Compl., ¶ 58).

The "elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.)

"Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved." (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 395.) California cases that permitted an action for conversion of money involved an amount of money that was "readily ascertainable." (*Id*. at 396.)

Defendant contends that Plaintiff cannot state a claim for conversion based on Defendant's failure to deliver restitution, citing to *Voris v. Lampert* (2019) 7 Cal.5th 1141. In *Voris,* the court held that conversion claims "typically involve those who have misappropriated, commingled, or misapplied specific funds held for the benefit of others." (*Id*. at 1153). In *Voris*, the court rejected an employee's claim for conversion based on unpaid wages, holding:

> Unlike the cases involving failure to turn over commissions, for example, which were earmarked for a specific person before being misappropriated and absorbed into another's coffers, a claim for unpaid wages simply seeks the satisfaction of a monetary claim against the employer, without regard to the provenance of the monies at issue. In this way, a claim for unpaid wages resembles other actions for a particular amount of money owed in exchange for contractual performance—a type of claim that has long been understood to sound in contract, rather than as the tort of conversion.

(*Id.* at 1156).

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| | | However, Plaintiff cites to *Ortega v. Toyota Motor Sales, USA, Inc.* (S.D. Cal. 2008) 572 F.Supp.2d 1218, which is on point with its facts. In *Ortega,* the court held that "Plaintiff states a claim for conversion because the Complaint alleges that Defendant has a statutory duty to deliver a specific, identifiable sum of money to Plaintiff (restitution in the amounts paid or payable to for the vehicle) and has instead wrongfully converted the money to its own use, causing damages." (*Id.* at 1220).<br><br>Defendant contends that *Ortega* is a federal decision that was decided eleven years prior to *Voris*. However, these two decisions are not inconsistent. With regards to <u>restitution</u>, the court in *Voris* held: "But *Cortez* is less helpful to Voris's case than he suggests; the language he cites concerned the availability of a restitutionary remedy under the Unfair Competition Law (UCL), which provides equitable relief for unfair business practices …and our holding was expressly limited to that context." (*Voris,* 7 Cal.5th at 1153). (See also *Brighton Trustees v. Transamerica Life Insurance Company* (C.D. Cal., Jan. 23, 2020), No. 219CV04210CASGJSX) 2020 WL 2036652 at *5, a more recent federal decision which discussed *Voris, supra*, and found *Ortega, supra,* to be "instructive" with regards to the issue of restitution.)<br><br>Accordingly, the court finds that Defendant failed to meet its initial burden, and the motion is DENIED as to this cause of action.<br><br>Defendant shall give notice. |
| 17 | Code 4 Media Group, Inc. vs. Kim | **NO TENTATIVE RULING** |
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